

VP-13

Company Petition under Sections 241 and 242

Before the National Company Law Tribunal, Mumbai Bench | Draft filing set dated 20 October 2025

Entity	VertexPay Technologies Private Limited
Status	Participant Case File
Benchmark note	Synthetic record. Names and identifiers are fictional; statutory and regulatory sources are real.

Cause title

IN THE MATTER OF THE COMPANIES ACT, 2013; AND IN THE MATTER OF VERTEXPAY TECHNOLOGIES PRIVATE LIMITED (CIN U72900MH2019PTC327418); AARAV MEHTA ... PETITIONER V. VERTEXPAY TECHNOLOGIES PRIVATE LIMITED, NISHA RAO, KAVYA MENON, MERIDIAN GROWTH FUND I, RIVERSTONE FINTECH OPPORTUNITIES SPV AND ROHAN D'SOUZA ... RESPONDENTS.

Jurisdiction and standing

The registered office is in Mumbai. The Petitioner holds 4,050,000 equity shares. Even on the Respondents' post-allotment register of 14,500,000 issued shares, the Petitioner holds approximately 27.93% and states that all calls are paid, exceeding the threshold in section 244(1). The petition is presented in Form NCLT-1 under rule 81 of the NCLT Rules, 2016 and verified separately.

List of dates

Date	Event
18 Nov 2022	Series A closing; SHA, employment agreement and amended Articles
7 Aug 2025	Board identifies runway, Nimbus wording and Vertex Labs disclosure issues
28 Aug 2025	Board authorises forensic review after Petitioner disconnects; quorum disputed
8-12 Sep 2025	Special notice; EGM notice; urgent Board suspension and bridge resolutions
23 Sep 2025	Petitioner's representations against removal
30 Sep 2025	EGM removes Petitioner and approves bridge/ESOP resolutions
1-4 Oct 2025	Allotment, termination, bad-leaver notice and subscription receipts

Date	Event
6-13 Oct 2025	Legal notice and reply

Facts and acts complained of

1. The Company was built by the Petitioner and Nisha Rao. The Series A bargain preserved joint founder-investor governance and included specific consent, information and pro rata protections.
2. A genuine cash and customer problem arose in mid-2025. The Petitioner accepts imperfect documentation and a poorly worded email, but denies diversion, dishonesty, regulatory operation without authorisation, or concealment for personal gain.
3. Meridian communications show a plan to obtain operational control before Series B diligence and use dilution if the Petitioner rejected the bridge. The process departed from the SHA and from fair dealing in a closely held company.
4. The 12 September Board lacked protected quorum, relied on incomplete papers and treated conflict as extinguishing contractual consent. The reconstructed minutes falsely record a clean unanimous process.
5. The EGM was called on defective service, suppressed the Petitioner's representations, excluded his login, and approved a selective issue at a steep discount without complete valuation or financing documents.
6. The Respondents have not produced the registered-valuer report, private-placement offer record, complete list of identified offerees, PAS-3 acknowledgement or proof that the full issue price was received before treating the allotment as fully paid. The Petitioner pleads non-compliance with sections 42 and 62(1)(c) and the applicable rules, without admitting that every such defect has the same consequence.
7. The allotment changed control and strengthened Meridian from 20% FD to approximately 40% FD while Riverstone, connected through the nominee director's spouse as adviser, received an allocation. The issue was not first offered for 15 Business Days pro rata.
8. The Board declared fraud and Bad Leaver status before final forensic work, although the independent director dissented. The purported low-price call on 35% of vested shares is punitive and incomplete.
9. The pattern is oppressive, prejudicial and designed to force an exit. Isolated contractual breaches are pleaded as part of a continuing course affecting membership and company governance, not merely an employment dispute.

Grounds

- lack of probity and fair dealing in the affairs of a closely held company;
- issue of shares for an improper control purpose and at an inadequately disclosed valuation;
- breach of statutory and constitutional meeting process, including notice, representations and minutes;
- breach of directors' duties and failure to manage disclosed conflicts;
- denial of information, reconstruction of minutes and premature adverse findings;

- conduct oppressive to the Petitioner and prejudicial to the Company, customers and sound governance.

Reliefs

10. set aside or regulate the effect of the 30 September and 1 October allotments, or direct a pro rata re-offer / independent valuation and appropriate capital adjustment;
11. restrain further securities issues, transfer under the bad-leaver call, destruction of evidence and alteration of statutory records pending disposal;
12. constitute an interim governance committee or appoint an independent observer;
13. direct inspection and production of specified books, native electronic records, valuation and forensic materials subject to safeguards;
14. declare the removal, to the extent founded on an oppressive process, ineffective or grant alternative governance/buyout relief that the Tribunal considers just and equitable;
15. order an independent valuation and purchase of the Petitioner's shares without minority or misconduct discount if continued association is impracticable;
16. grant costs and further orders under section 242.

Arbitration disclosure

The SHA contains an arbitration clause. The Petitioner reserves arbitration for damages and contractual relief but submits that the statutory oppression petition and remedies affecting the Company's affairs and capital are for the Tribunal to determine. No arbitral tribunal has been constituted. The Petitioner has nominated Justice (Retd.) Mira Kulkarni without prejudice.

Annexure index

Annexure	Document
P-1	SHA dated 18 November 2022
P-2	Articles extracts
P-3	Board compilation
P-4	EGM pack
P-5	Founder emails
P-6	Investor emails produced later; leave sought
P-7	Cap table workbook extracts
P-8	Legal notice and reply
P-9	Electronic record affidavit/certificate - incomplete

Verification note

A separate NCLT-6-style affidavit is included in VP-15. The pleading labels some investor emails as privileged; their use and admissibility are disputed.